

CONTRACT: Support Contract - Microsoft

Contract Details

Contract ID	C-006
Vendor	Microsoft
Expiry Date	2025-06-10
Version	v2.0
Status	Active
Risk Level	Low
Created By	Anjali Rao
Uploaded Date	2023-06-01

Contract Content

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This Support Contract ("Agreement") is entered into as of the Effective Date specified below by and between Microsoft Corporation, a corporation organized under the laws of the State of Washington, with its principal office located at One Microsoft Way, Redmond, WA 98052 ("Vendor"), and the undersigned entity ("Customer").

1. Parties

This Agreement is made between Microsoft Corporation ("Vendor") and the Customer identified in the signature block below. Vendor agrees to provide support services to Customer in accordance with the terms and conditions set forth herein.

2. Definitions

For the purposes of this Agreement, the following terms shall have the meanings set forth below:

- (a) "Support Services" means the technical assistance, troubleshooting, maintenance, and other services provided by Vendor to Customer as described in Section 3.
- (b) "Response Time" means the time within which Vendor shall respond to Customer's support requests, as specified in Section 3.
- (c) "Uptime Commitment" means the percentage of time during which Vendor's services shall be operational and available to Customer, as specified in Section 3.
- (d) "Effective Date" means the date on which this Agreement is executed by both parties.

3. Scope of Services

Vendor shall provide Support Services to Customer, including but not limited to:

- (a) Technical assistance for Vendor's software and systems;
- (b) Troubleshooting and resolution of issues reported by Customer;

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(d) Response to support requests within the following timelines:

- (i) Critical issues: within 1 hour;
- (ii) High-priority issues: within 4 hours;
- (iii) Standard issues: within 24 hours.

Vendor shall ensure an Uptime Commitment of 99.9% for its services, excluding scheduled maintenance and events beyond Vendor's reasonable control.

4. Term and Termination

- (a) This Agreement shall commence on the Effective Date and remain in effect for a term of one (1) year, unless terminated earlier in accordance with this Section.
- (b) Either party may terminate this Agreement upon thirty (30) days' written notice to the other party.

(c) Vendor may terminate this Agreement immediately if Customer fails to pay any fees due under this Agreement or breaches any material term of this Agreement.

5. Fees and Payment

(a) Customer shall pay Vendor the fees specified in the applicable invoice or fee schedule provided by Vendor.

(b) All fees shall be payable within thirty (30) days of the invoice date.

(c) Late payments shall incur interest at the rate of 1.5% per month or the maximum rate permitted by law, whichever is lower.

6. Confidentiality

(a) Each party agrees to maintain the confidentiality of all non-public information disclosed by the other party t